

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Frederick S. Chung**

Rachel Tien, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: December 3, 2024 TIME: 9:00 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court 3.1308(a)(1) and Local Rule 8.E.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	23CV426219	Thomas Fleischli v. Harminder Sing Dhaliwal	Order of examination: <u>parties to appear</u> .
LINE 2	24CV441458	Kim Narog v. William T. Arkley et al.	Click on LINE 2 or scroll down for ruling.
LINE 3	21CV391989	Escarlett Valle Guillen Lopez et al. v. DGDG 10, LLC et al.	Click on LINE 3 or scroll down for ruling.
LINE 4	24CV430701	Wells Fargo Bank, N.A. v. Jocelyn R. Lebumfacil	Motion for RFAs to be deemed admitted: notice is proper, and the motion is unopposed by defendant. Good cause appearing, the court GRANTS the motion. Plaintiff to prepare the proposed order.
LINE 5	18CV330988	Discover Bank v. Chase A. Dickson	Claim of exemption: <u>parties to appear</u> . Judgment debtor claims that the property at issue is exempt as payments of either social security benefits or veterans benefits, but the court has not received any evidence from the judgment debtor to indicate that the bank account amount (\$10,701.76) is entirely the product of such benefit payments. The court needs to hear from the parties.
LINE 6	19CV349959	State Farm Mutual Automobile Insurance Company v. Christian Cervantes	Motion to vacate dismissal and enforce settlement: notice is proper, and the motion is unopposed. Good cause appearing, the court GRANTS the motion. Moving party to prepare proposed order and final judgment.
LINE 7	22CV396170	Christian Humanitarian Aid, Inc. v. AM Star Construction, Inc. et al.	Click on LINE 7 or scroll down for ruling.

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LINE #	CASE #	CASE TITLE	RULING
LINE 8	24CV442346	Jamal Ramses Eagle Comes Looking El Bey v. Lor Xiong et al.	Motion to “supplement the record”: the court does not understand the relief being sought by this motion. It appears that the plaintiff wishes the court to take judicial notice of certain federal cases, cited on pages 2-3 of the motion, but the relevance of these cases to any contested issue of law or fact in this case remains unclear. At best, the request is premature. If plaintiff wishes to rely on these federal cases in response to the <u>demurrer</u> filed by defendants (to be heard on February 25, 2025), plaintiff may explain their relevance in an opposition brief (due February 10, 2025). If plaintiff wishes to rely on these federal cases at <u>trial</u> , then that issue will be addressed even later in the case. Until then, the issue is not ripe, as there is no “record” to supplement. The motion is DENIED.

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